

In T 390/07 the claim request which had been replaced by another request in the proceedings before the opposition division because it was manifest that it would fail, thereby avoiding a formal decision, but which had then been filed again on appeal, was considered inadmissible by the board.

In T 691/09, the board deemed the belated introduction of a request which had been withdrawn during the oral proceedings before the opposition division to be an abuse of procedure.

In T 52/15 the main request and auxiliary requests 1 and 2 were filed with the statement setting out the grounds of appeal and corresponded to the proprietor's initial request and two auxiliary requests filed during the oral proceedings before the opposition division. These requests differed substantially from the request which was decided upon in the appealed decision. The board stated that the reintroduction of previously withdrawn requests on appeal ran counter to the main purpose of inter partes appeal proceedings, namely to give the losing party the possibility of challenging the decision of the opposition division on its merits. The board also noted that although there have been decisions where the boards have allowed patent proprietors to reinstate broader requests which had been withdrawn or not maintained during the opposition proceedings, numerous decisions have also been issued in which the board's discretion has been applied in a strict manner and such requests have not been admitted into the appeal proceedings (see T 390/07, T 361/08, T 671/08, T 922/08, T 1525/10, T 140/12, T 1697/12, T 143/14). The board held that this appeared to be the current predominant approach applied by the boards. The requests were not admitted into the appeal proceedings (Art. 12(4) RPBA 2007).

(ii) Request admitted by the board

In T 2599/11, with respect to Art. 12(4) RPBA 2007, the board had to consider whether the non-filing of the sole request submitted in the appeal proceedings or the withdrawal of the similar request A in the opposition proceedings prevented the opposition division from giving a reasoned decision on the critical issues. In the case at issue, the board concluded that the **critical issues** in the opposition and the appeal proceedings were **identical** in so far as the question had to be answered whether the claimed subject-matter involved an inventive step. Hence, the sole request of the appellant did not bring an entirely fresh case and was admitted into the proceedings (see also T 467/13).

In T 937/11 the main request was identical to auxiliary request 1 which was withdrawn before the opposition division. The board stated that the circumstances of the present case had to be distinguished from the situation underlying T 1525/10 and T 390/07 (see above). Because the opposition division's reasons for rejecting the main request evidently applied likewise to the claims of auxiliary request 1, the appellant did not avoid a decision on the ground for opposition when it withdrew auxiliary request 1. Moreover, the appellant neither surprised nor disadvantaged the opposing parties on appeal when it turned the withdrawn auxiliary request 1 into its main request before the board.

In T 883/12 the proprietor argued convincingly why it had not been unreasonable to withdraw a number of the auxiliary requests before the opposition division without a

decision having been taken on them, namely because the opposition division had deemed, with respect to a higher ranking request, that a particular feature was required in order to allow an inventive step to be recognised; the claims of the withdrawn auxiliary requests did not include this feature. The board stated that the current request was not one which could reasonably have been filed in the first instance proceedings.

In T 350/17 the board admitted a request substantially identical to an auxiliary request, which had been withdrawn and substituted at the oral proceedings before the opposition division. The board distinguished its case from T 140/12 on the basis that this earlier auxiliary request had been substituted under exceptional circumstances which justified its resubmission. First, the withdrawal had not precluded any discussion on patentability, because the division had already announced its conclusions. Second, the division's warning that only one further auxiliary request would be admitted had arguably put pressure on the patentee to focus on requests which would overcome the outstanding objections.

In T 1855/16 the board held that the resubmitted auxiliary requests did not amount to an entirely fresh case. The two critical issues had been discussed at the oral proceedings and decided on by the opposition division, albeit in the context of different auxiliary requests.

#### j) Reintroduction of subject-matter abandoned during examination

According to the board in T 852/18, the reintroduction of subject-matter abandoned during examination only at the appeal stage would take the discussion in a new direction that could not have been foreseen when the opposition notice was formulated or indeed during the entire examination of the opposition. The board decided to exercise its discretion under Art. 12(2) and (4) RPBA 2007 with Art. 114 EPC not to admit the auxiliary request at issue into the proceedings.

### 5.11.4 Ex parte appeal procedure

#### a) Requests which could have been presented in the examination proceedings

Art. 123(1) EPC provides that the applicant shall be given at least one opportunity to amend the application of his own volition. R. 137(3) EPC subjects any other amendments to the examining division's consent. As made clear by R. 100(1) EPC, this provision applies analogously on appeal against examining division decisions (T 1969/08). According to Art. 12(4) RPBA 2007, the board has the power to hold inadmissible requests which were not admitted in the first instance proceedings.

In T 1178/08 the board pointed out that a board in an ex parte case has discretion over whether or not to admit requests which could have been presented to the first instance, but were not (Art. 12(4) RPBA 2007). It must exercise that discretion having regard to the particular circumstances of the individual case. The board considered that this view is consistent with the view taken in previous decisions in the different context of inter partes cases (see R 10/09, T 144/09, R 11/11 and T 1007/05). The board was aware that amended claims filed together with the statement of grounds of appeal have in many cases

been admitted into appeal proceedings if they constituted a legitimate reaction to the reasoning underlying the appealed decision. Indeed, such amended claims filed with the statement of grounds of appeal may achieve the goal of "a more defined and controlled initial phase of proceedings" (see T.1007/05). But this does not mean that the board is obliged to admit amended claims solely because they were filed with the statement of grounds of appeal. In the case in hand, the applicant had been given several opportunities to file amended claims in the first-instance proceedings. No auxiliary requests were filed. By presenting its sole and amended request only in appeal proceedings the applicant was making it impossible for the board to examine the contested decision.

In T.1802/12 the applicant had been given several opportunities to file amended claims in the first-instance proceedings. The board concluded that the auxiliary request could and should have been submitted during the first-instance proceedings. Although the examining division issued only one communication pursuant to Art. 94(3) EPC, the clarity objections raised therein had been reiterated in great detail in the annex to the summons to oral proceedings. In reply to the summons to oral proceedings which had been postponed twice as requested by the appellant, the appellant reacted by not attending them.

In T.1472/08, the board concluded that the purpose of examination-appeal proceedings could not be to completely reopen the examination proceedings by admitting claims defining features more broadly if those claims could already have been presented in those proceedings and the broader definitions were not apt to overcome the objections raised in the contested decision or by the board (see also T.2000/09 and T.1428/11).

In T.1212/08, the examining division had raised objections as to the clarity, novelty and inventive step of the claimed subject-matter in its summons to oral proceedings, prompting the applicant to request a decision on the basis of the documents on file. Auxiliary request 2 having first been filed with the grounds of appeal, the board considered whether this new subject-matter should be examined and decided on for the first time on appeal, or whether it should remit the case to the department of first instance for further prosecution. It found, however, that neither of these procedural options was appropriate and acceptable, taking the view that the feature derived from the description was a new aspect which had no equivalent in the original claims, while remittal of the case would make the proceedings considerably longer. It observed that these two inappropriate options would never have arisen if auxiliary request 2 had been presented on time before the examining division (see also T.892/11).

The board in T.1108/10 endorsed T.1212/08. Appeal proceedings were not a continuation of examination at first instance or a second, parallel procedure for the substantive examination otherwise to be carried out by the examining division which applicants could freely opt to launch depending on the circumstances. See also T.1841/08.

In T.1768/11 the appellant should have realised that the newly raised objections by the examining division necessitated the filing of amended requests. Yet it refrained from doing so. It appeared to the board that the appellant preferred to discontinue the still-ongoing proceedings before the examining division and to prosecute its case instead directly before the board. Art. 12(4) RPBA 2007 is intended to prevent just that. Nevertheless, since the

requests on file presented the board with no difficulties, it decided to exercise this discretionary power in the appellant's favour and to admit them into the proceedings.

In T 1569/13, T 1906/13, T 1818/16, T 1648/17 and T 14/20 too, the auxiliary requests not filed until the appeal stage were not admitted.

b) Admission of requests already refused by the examining division

It is the established jurisprudence of the boards of appeal that the power of the examining division to consent to amendments under R 137(3) EPC is a discretionary power. According to G 7/93 (OJ 1994, 775) the way in which the examining division should exercise its discretion to allow an amendment of an application must depend upon the circumstances of each individual case, and must also depend upon the stage of the pre-grant procedure which the application has reached. A board of appeal should only overrule the way in which a department of first instance has exercised its discretion if it comes to the conclusion either that the department of first instance, in its decision, has not exercised its discretion in accordance with the right principles or that it has exercised its discretion in an unreasonable way. The exercise of a discretionary power has to strike a balance between, in particular, the applicant's interest in obtaining adequate protection for his invention and the EPO's interest in bringing the examination to a close in an effective and speedy way. Moreover, the exercise of a discretionary power has to be reasoned, otherwise it would be arbitrary (T 246/08).

In T 820/14 the board pointed out that it had its own discretion to admit a request not admitted at first instance and was generally not bound by how the first-instance department had exercised its discretion (on this see also T 971/11).

In T 1888/18 it was not apparent to the board that the examining division (which had applied the criterion of prima facie allowability) had exceeded the proper limits of its discretion. The board explained that in such a situation it nevertheless had to exercise its discretion under Art. 12(4) RPBA 2007 independently (see T 971/11, T 2219/10 and T 1816/11), giving due consideration to the appellant's additional submissions and to any changes in the circumstances.

c) Resubmission of requests withdrawn during examination

In T 902/10 the board held that it is established case law that the Boards of Appeal do not admit requests that were withdrawn during first instance proceedings (T 922/08); if the board were to admit such a request, it would be contrary to the main purpose of ex parte appeal proceedings, which are primarily concerned with examining the contested decision (cf. G 10/93, OJ 1995, 172), i.e. with providing the adversely affected party (the applicant) with the opportunity to challenge the decision on its merits and to obtain a judicial ruling as to whether the first-instance decision was correct (see also T 2278/08, T 1306/10, T 1311/11, T 2489/11, T 1818/16).

In T 922/08 claim 1 of the main request filed with the statement of grounds of appeal was identical to claim 1 of the request that had been filed as a first auxiliary request before the

examining division. During the oral proceedings before the examining division, the applicant withdrew this request of its own volition. The board stated that even if the withdrawal of the present main request during the examination procedure was not considered an abandonment of this request for subsequent appeal proceedings as argued by the appellant, the fact that the request was withdrawn in the first-instance proceedings precluded the issue of a reasoned decision on its merits by the examining division. Reinstating this request upon appeal would compel the board either to give a first ruling on the critical issues, which runs contrary to the purpose of a second-instance ruling, or to remit the case to the department of first instance, which is clearly contrary to procedural economy (see also T 1156/09, T 1231/09, T 902/10, T 184/13, T 2508/13).

In T 675/13 the embodiment which claim 1 covered had already been pursued in the first-instance proceedings and was then abandoned, thus preventing that aspect of the invention from being decided on its merits by the examining division. The board held that its reinstatement would allow a kind of inadmissible "forum shopping" (see e.g. T 2017/14).

In T 435/11 claim 1 of the request essentially corresponded to a claim on which the examining division had expressed a negative opinion with respect to novelty and which had subsequently been withdrawn in favour of more restricted claims. The board took into account the special circumstances of the case. In the first-instance proceedings, the appellant had introduced limitations against which the examining division had raised objections under Art. 123(2) EPC, and the appellant had not been able to overcome those objections by further amendment. If the appellant in these appeal proceedings was to be afforded a way out at all, it had to be allowed to revert to a claim with the offending features removed. The board therefore admitted the main request into the proceedings.

#### d) Feature re-introduced on appeal

In T 1969/08 the board stated that if a feature objected to as "obscure" by the examining division and omitted from all requests subsequently filed by the applicant is then reintroduced in the claims filed one month before oral proceedings in the appeal proceedings without commenting on the objection raised earlier against this feature, the board may refuse to admit these claims into the proceedings at its discretion under Art. 12(4) RPBA 2007.

### 5.12. Criteria for consideration of amended claims

#### 5.12.1 Principles applicable to amended claims

It became apparent in early decisions that the boards do admit amended requests or auxiliary requests in appeal proceedings because they are serious attempts at overcoming objections, or if their late filing can be justified and admitting them does not involve the board or the other party, as the case may be, in an examination which would significantly delay the proceedings. However, requests filed shortly before or during oral proceedings, in particular, may be refused if they are not clearly allowable (T 95/83, OJ 1985, 75; T 153/85, OJ 1988, 1; T 406/86, OJ 1989, 302; T 295/87, OJ 1990, 470; T 381/87, OJ 1990, 213; T 831/92).